

VCL303944 Wells Fargo Bank, N.A. vs. Lopez, Madison

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-24

Motion: Motion to Set Aside Dismissal and Enter Judgment

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Re: Wells Fargo Bank, N.A. vs. Lopez, Madison

Case No.: VCL303944

Date: August 24, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Motion to Set Aside Dismissal and Enter Judgment

Tentative Ruling: To grant the motion and enter judgment as requested

Facts

In this collection matter, Plaintiff filed a stipulation resolving this matter for the principal amount of \$5,899.00, and that this amount would be paid via monthly installments as follows:

(A) \$347.00 shall be paid on or before March 15, 2024;

(B) \$347.00 shall be paid on or before the 15th of each and every consecutive month commencing on or before April 15, 2024 through and including June 15, 2025;

(C) \$347.00 shall be paid on or before July 15, 2025;

In the event of default, the stipulation indicates that Plaintiff is entitled to entry of judgment for the judgment amount noted above as well as costs, less any credits.

The stipulation indicates that the Court shall retain jurisdiction under Code of Civil Procedure section 664.6.

On March 14, 2024, this matter was dismissed pursuant to the stipulation.

Plaintiff indicates that Defendant has made payments totaling \$5,554.57, but has failed to make any payments thereafter and is in breach of the stipulation.

Authority and Analysis

Section 664.6 (a) states:

“If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.”

“The court’s retention of jurisdiction under section 664.6 includes jurisdiction over both the parties and the case itself, that is, both personal and subject matter jurisdiction.” (Lofton v. Wells Fargo Home Mortgage (2014) 230 Cal.App.4th 1050, 1061.) “Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit.” (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

Therefore, the Court exercises jurisdiction over this dismissed matter pursuant to Code of Civil Procedure section 664.6, having found the parties have sufficiently stipulated to this continuing jurisdiction for purposes of entering this settlement as a judgment.

Defendant appears to have breached the settlement, based upon the declaration of Plaintiff’s counsel and, the Court, having no opposition, grants the motion and enters judgment in the amount requested of \$994.00, consisting of the \$6,248.57 principal amount, less \$5,554.57 in payments made, plus \$300 in costs.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.